



SPONSOR: Sen. Huxtable & Sen. Townsend & Rep. Harris &
Rep. Lambert
Sens. Seigfried, Sturgeon; Reps. Morrison, Osienski,
Ross Levin, Wilson-Anton

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 89

AN ACT TO AMEND TITLE 6 OF THE DELAWARE CODE RELATING TO CREDIT CARD TRANSACTIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 25, Title 6 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

Subchapter XII. Credit Card Surcharges

§ 2600. Definitions.

As used in this subchapter:

(1) "Credit card" means any card or document entitling its holder to obtain any goods or services by the production of the card, document, or information on such card or document, and entitling its holder to tender payment for such goods and services at a later date.

(2) "Surcharge" means any additional amount imposed by a person, retailer, or seller for a credit card transaction that increases the amount of the transaction for the use of the credit card as payment.

§ 2601. Credit Card Surcharges.

In any sales, service, or lease transaction, no person, retailer, or seller that regularly accepts payment by credit card may not do any of the following with regard to a person who elects to use a credit card as payment in lieu of payment by cash, check, or similar means:

(1) For transactions not in excess of \$1,500:

(a) Impose a surcharge greater than the percentage processing fee charged by the credit card company.

(2) For transactions in excess of \$1,500:

(a) Refuse to accept payment by credit card.

(b) Impose a surcharge.

SYNOPSIS

This Act prohibits a seller that regularly accepts payment by credit card from (1) imposing a credit card surcharge greater than the percentage processing fee charged by the credit card company, for transactions of \$1,500 or less, and (2) refusing to accept payment by credit card or imposing any credit card surcharge, for transactions that exceed \$1,500.

Author: Senator Huxtable